

9:00 AM

Line 2

25-CIV-02066 SEAN MCCULLOUGH VS. ARVAND SABETIAN, ET AL

SEAN MCCULLOUGH
ARVAND SABETIAN

THOMAS W.J. PURTELL
ARIEL M. GOZZIP

Defendants' Motion to Strike Portions of Plaintiff's First Amended Complaint

TENTATIVE RULING:

Defendants Lau, Ziprent, Sabetian, and Stein's Motion to Strike portions of Plaintiff Sean McCullough's First Amended Complaint ("FAC") is GRANTED.

In reaching its decision the Court considered all the submitted and relevant pleadings including the Complaint, the Notice of Motion and Motion to Strike, Memorandum or Points and Authorities ("MPA"), Opposition brief, Reply and the declarations submitted by each party.

Defendants move for an order striking the following portions of Plaintiff's FAC for punitive damages:

- The prayer for attorneys' fees against movants on page 11, lines 10-11.
- The prayer for attorneys' fees against movants on page 13, line 4-5.
- The prayer for attorneys' fees against movants on page 15, line 7-8.
- The prayer for punitive damages against movants on page 15, lines 21-22.
- The prayer for punitive damages against movants on page 16, line 12-13.

(Notice of Motion to Strike, p.2.)

Plaintiff opposes, primarily on the basis that the Court already denied Defendant's motion to strike as alleged in Plaintiff's original Complaint.

Meet and Confer

A party filing a motion to strike "shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc., § 435.5.) Counsel are reminded that adherence to professional courtesies and standards greatly assist the goals of the litigation process and system to address issues which cannot be resolved informally upon their merits. Here, the Court notes the parties did not meet and confer as required because Plaintiff's counsel was again unresponsive to defense counsel's efforts to arrange their meeting. (Declaration of Katharine

Burlington, Esq. iSo Demurrer ¶¶4-5.)

Legal Standard

A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Code Civ. Proc. § 437; *Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342.) A court may, upon motion or in its discretion, “[s]trike out any irrelevant, false, or improper matter inserted in any pleading” and “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436, subds. (a)-(b).) An “irrelevant matter” is an allegation that “is not essential to the statement of a claim or defense,” “is neither pertinent to nor supported by an otherwise sufficient claim or defense,” or “a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Code Civ. Proc., § 431.10, subds. (b)-(c).)

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721, 34 Cal.Rptr.2d 898, 882 P.2d 894.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) “ ‘Malice’ ” is defined in the statute as conduct “intended by the defendant to cause injury to plaintiff, or despicable conduct that is carried on by the defendant with a willful and conscious disregard for the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1); *College Hospital, supra*, 8 Cal.4th at p. 725, 34 Cal.Rptr.2d 898, 882 P.2d 894.) “ ‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Civ. Code, § 3294 subd. (c)(2).) (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

Due to the ruling on the Demurrer to the FAC on this same day, the requests below are essentially moot and for uniformity, the Court GRANTS the motion on:

- The prayer for attorneys’ fees against movants on page 11, lines 10-11.
- The prayer for attorneys’ fees against movants on page 13, line 4-5.
- The prayer for punitive damages against movants on page 15, lines 21-22.

On October 24, 2025 on the Motion to Strike portions of the Complaint, this Court held:

Upon review of the Complaint, the Court finds Plaintiff has alleged sufficient facts demonstrating the necessary level of oppression, fraud or malice to support a request for punitive damages.

The Court now revisits that ruling as it appears to have been somewhat in error. Note, that ruling does not need to be reversed since it was mooted by the filing of the FAC.

The Court of Appeal explains that “[i]n order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.”

(*Clauson v. Sup. Ct.* (1998) 67 Cal.App.4th 1253, 1255.) When considering whether the ruling on such a motion is correct, the court should “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Ibid.*)

A plaintiff may recover punitive damages for a defendant’s “oppression, fraud or malice” if shown by “clear and convincing” evidence. (Civ. Code, § 3294, subd. (a).) Allegations that are “mere speculation” will not establish malice. (*Henderson v. Sec. Nat. Bank* (1977) 72 Cal.App.3d 764, 771.)

The FAC’s Seventh Cause of Action for Private Nuisance that remains at issue, does not provide any ultimate facts to support a claim for punitive damages. However, it incorporates prior allegations. FAC, ¶ 52. The only potentially factually sufficient allegations are then in Paragraphs 16, 17 and 18.

Paragraph 16 of the FAC, alleges that “[s]ubstantial defective conditions existed at the Subject Property during Plaintiff’s tenancy” however, just concluding that there were existing or preexisting conditions does not demonstrate any actual despicable conduct, nor any conscious disregard of Plaintiff’s rights. Problematic is that this paragraph also does not delineate which of the Defendants it applies to.

Paragraph 17 of the FAC, then generally refers to Defendants negligently exposing “Plaintiff to unsafe, illegal, uninhabitable and dangers conditions” without any factual detail. Alleging a failure to provide working plumbing, but there are no facts on what was wrong with the plumbing. There is likewise a reference to a failure to repair “severe leaks” which leaks are not identified. The allegations then in a similar and repeated fashion, refers to “electrical components,” “sewage” and “appliances” that did not conform with applicable law without identifying anything that actually failed nor identifying the laws allegedly broken. There is a reference to hiring “unlicensed contractors” but no actual substandard work is identified. Finally, the section ends with a conclusion, that “Defendants permitted the Subject Property to deteriorate into a dilapidated, substandard uninhabitable state” which is argument, not factual. Again problematic is that this paragraph also does not delineate which of the Defendants it applies to.

Paragraph 18 of the FAC, then essentially repeats the conclusory allegations of Paragraph 17, but finally attempts to allocate them to (apparently) only Defendants Woodlake Anchor and Clement Joseph Stein III. This is only helpful to ascertain that these allegations, only pertain to these two defendants, but the underlying allegations have the same problems as Paragraph 17.

Accordingly, Defendants’ Motion to Strike is GRANTED on:

- The prayer for attorneys’ fees against movants on page 15, line 7-8.
- The prayer for punitive damages against movants on page 16, line 12-13.

The Court notes that leave to amend the FAC was granted on the above Demurrer. If Plaintiff intends to allege the necessary factual detail to support a claim for punitive damages on the Private Nuisance cause of action, then Plaintiff is granted leave to amend for that purpose.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

25-CIV-04482 CARLOS TAPIA, ET AL VS. CHRISTINA CORPUS, INDIVIDUALLY AND
IIN HER OFFICIAL CAPACITY, ET AL

CARLOS TAPIA
CHRISTINA CORPUS, INDIVIDUALLY AND IN HER
OFFICIAL CAPACITY

GRANT A WINTER
WAI SHUN WILSON LEUNG

Defendant County of San Mateo and Defendant Matthew Fox's Demurrer to Plaintiffs' Complaint

TENTATIVE RULING:

For the reasons stated below, Defendants County of San Mateo's and Matthew Fox's demurrer, filed Jan. 28, 2026, which is directed to Plaintiffs Tapia et. al.'s original Complaint, filed June 13, 2025, is HEREBY TAKEN OFF CALENDAR AS MOOT. The Court finds that on Aug. 3, 2026, Plaintiffs timely attempted to file a First Amended Complaint ("FAC") against Defendants County of San Mateo and Matthew Fox, which should have been accepted for filing, and which would have rendered this demurrer moot.

Background.

On June 13, 2025, Plaintiffs filed their original Complaint. On Jan. 28, 2026, Defendants County of San Mateo and Matthew Fox filed a joint demurrer to the Complaint. The hearing date for the demurrer was initially set for Aug. 14, 2026, and rescheduled for Aug. 21, 2026. On May 22, 2026, defendant Corpus filed an Answer to the Complaint. On Aug. 3, 2026, Plaintiffs attempted to file their proposed FAC, but the Clerk's Office rejected the attempted filing of the FAC, on grounds that defendant Corpus had already filed an Answer. (See Aug. 10, 2026 Decl. of Jason Hauer, ¶¶ 3-5; Exhibits 2-3.) The deadline for Plaintiffs to file their Opposition to the demurrer was Aug. 10, 2026.

Application/ruling.

With respect to Defendants County of San Mateo and Matthew Fox, Plaintiffs' Aug. 3, 2026 attempted filing of their FAC was timely under Code Civ. Proc. § 472(a). The fact that defendant Corpus had already filed an Answer did not terminate Plaintiff's right to amend with respect to the claims asserted against the County of San Mateo and Fox. (*Barton v. Khan* (2007) 157 Cal.App.4th 1216, 1220-21.) Therefore, the Clerk's Office should have filed the FAC, which would have rendered this demurrer moot. Because Plaintiffs timely exercised their right to amend as against the County of San Mateo and Fox, and because the Clerk's rejection of the FAC was based upon the erroneous conclusion that defendant Corpus' Answer terminated that right, the Court declines to determine the merits of the County of San Mateo's and Fox's demurrer to the original Complaint.
